CITY OF OPA-LOCKA

"The Great City"

Clerk's Action Summary Minutes
Regular Commission Meeting
April 22, 2009
7:00 p.m.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:00 p.m. on Wednesday, April 22, 2009 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida 33054.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Rose Tydus, Vice Mayor Myra L. Taylor, Commissioner Dorothy Johnson and Mayor Joseph L. Kelley. Also in attendance were: Interim City Manager Bryan K. Finnie, City Attorney Burnadette Norris-Weeks and City Clerk Deborah S. Irby. Commissioner Timothy Holmes was not in attendance.

3. INVOCATION:

The Invocation was delivered by Commissioner Rose Tydus.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Commissioner Johnson pulled agenda item 15.1 and 15.2 from the Consent Agenda; Mayor Kelley pulled agenda item 15.3 from the Consent Agenda.

It was moved by Commissioner Johnson, seconded by Commissioner Tydus to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Commissioner Holmes	Not present
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

8. APPROVAL OF MINUTES:

Regular Commission Meeting – April 8, 2009

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to approve the minutes of the regular commission meeting of April 8, 2009.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Not present
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Mark Brown, Assistant to Commissioner Barbara Jordan, District 1 County Commissioner came forward and introduced Corey Jones, Project Manager, Community Action Agency (CAA) (copy of list of individuals who have participated in the Opa-locka Home Beautification Project was provided to the City Clerk for distribution to the Commission). He stated that the update on the Miami-Dade County Opa-locka Rehabilitation portion of the program would be provided at a later meeting.

Corey Jones, Project Manager for Community Action Agency provided an update on Miami-Dade County Opa-locka Home Beautification project. This presentation included a slide show of before/after pictures of the homes that participated in this program.

Commissioner Johnson expressed her concerns relating to the maintenance of the grassy area on NW 27th Avenue at State Road 9. She thanked Mr. Brown for his assistance in getting some of the trees trimmed on NW 32nd Avenue.

In terms of the maintenance on NW 27th Avenue at State Road 9, Mr. Brown indicated that he would review the agreement between the city and FDOT as to who's responsible.

10. PUBLIC PRESENTATION:

1. Miami-Dade Aviation

re: Opa-locka Executive Airport

Jose Ramos, Chief of Aviation Planning, Miami-Dade Aviation came forward and gave a presentation on the proposed county actions to facilitate and encourage the economic development at Opa-locka Airport.

Of concern to Commissioner Johnson and Mayor Kelley was the lack of notification to the City of Opa-locka.

Mark Warner, Chief of the Metropolitan Planning Section, Miami-Dade County Planning & Zoning Department of 111 NW 1st Street, Miami, Florida came forward and stated that municipal zoning notifications were sent out by the county which went not only to the City of Opa-locka but also to the cities of Miami Lakes, Hialeah and Hialeah Gardens.

Mayor Kelley asked whether that notification was received by the city. Manager Finnie replied that to his knowledge the city had not received such notification.

Manager Finnie asked for details on the notification because his understanding was that a great deal of this planning took place on properties designated as part of the airport. He asked, were zoning changes made to properties external to the airport?

Mr. Warner advised that no zoning changes were made to properties external to the airport; as a matter of fact, no zoning changes were made at all.

Manager Finnie requested that Mr. Warner identify where that information went to and asked whether there was direct discussion with the city's Planning Department.

Mr. Warner advised that he would find out the details as far as the notification is concerned; however, the notification did go out.

Mayor Kelley's purpose for asking Miami-Dade Aviation to make a presentation before the Commission was because he was unhappy with the notification information. The Commission had talked about airport development for a long time and they're finally getting to the point where things are happening; however, he was not happy that the city wasn't in the loop in terms of what is going on and he too would like to know where the notification went.

Mr. Warner provided the dates for the Developmental Impact Committee review on May 6, 2009 and the hearing for the actual re-zoning before the Board of County Commissioners on May 21, 2009.

Manager Finnie expressed the need to clarify issues relating to the land located within the City of Opa-locka prior to the May 6, 2009 meeting.

Initially Mayor Kelley said he was concerned about the city not being involved in the process for the warehouse and the Post Office and one of the issues that came up was the

issue with the zoning, the difference in zoning and some other issues he wasn't happy about. However, he wanted Miami-Dade Aviation to make a presentation and they heard the city's concerns and lack of information. He suggested that the City Manager follow up on the issue with the airport.

Commissioner Johnson stated that she doesn't want anyone to tell her what's in the City of Opa-locka because there are documents that she wants both the City Manager and City Attorney to provide to the Commission. She further asked that Mr. Brown have Commissioner Jordan involved and get back with the Commission because the city wasn't given a fair shot.

With regards to the portion within the incorporated area of the city, Mr. Warner stated that it was his understanding this was airport property and the city has not been able to enforce whatever zoning in on the property within the boundary of the airport. In order to do some of the things Mr. Ramos was talking about, the very first ordinance that's up in terms of district regulations that would apply would only apply to the non aviation types of uses and the county cannot even enforce those kinds of regulations unless it's rezoned to GP.

Mayor Kelley stated to the City Manager that this issue may require a separate Town Hall Meeting. He further thanked Miami-Dade Aviation for their presentation.

Dan Gonzalez, Staff Duty Officer with Miami-Dade Fire Rescue came forward to address any outstanding concerns regarding the level of service provided by Miami-Dade Fire Rescue.

2. Harvey, Covington, & Thomas, LLC
re: City's Comprehensive Annual Financial Report (CAFR)

Rose Henderson, Admin Department and Conner Courtamach, Audit Manager both of Harvey, Covington & Thomas, LLC came forward and briefly introduced themselves. Roderick Harvey, CPA, Harvey, Covington & Thomas, LLC appeared before the Commission to present the City of Opa-locka's Fiscal Year 2008 Annual Financial Report (copies of this report were provided to the City Clerk for distribution to the City Commission).

He spoke on prior management letter comments as it related to the Human Resources Department.

As it related to the minus in the General Fund, Vice Mayor Taylor asked, where does the city pull that money from to cover the deficit?

Based on the method of accounting, Mr. Harvey stated that the figure may not impact cash on a dollar for dollar basis because some of the items are approved for and some items are stretched over time. However, the theory of accounting is correct because the commitment to spend that cash was done in that time period.

Due to the recent economic hardship and the reduction in funding to government, Commissioner Johnson expressed her concerns regarding the city's expenditures for 2006 and 2007. She requested to be provided with the organizational chart, salaries and job descriptions for all employees. She asked, what did Mr. Harvey base his statement on in terms of the significant improvement in Human Resources?

During the initial year when he reviewed the Human Resources Department, Mr. Harvey said that department was operating on a manual system and there were many things from the files. Based on the most recent review of Human Resources, there have been significant changes as far as things being in the file on a more accurate level. Additionally, he noted a couple of issues that would be worked out overtime as staff continues to work out the issues in the HR process.

He further spoke in detail regarding the importance of accurately recording employee's vacation, sick and/or leave balances in the files.

Commissioner Johnson said that it was alleged salary increases occurred prior to the budget amendments; therefore, in looking at the future, there should be some sort of ordinance or review from the Commission. After hearing about the high salaries for employees in the city, she said she would conduct a survey with comparable cities.

Since there had been some changes from a technology standpoint as far as upgrading and moving forward, Mayor Kelley said one of the areas that always come to mind is the accumulative time and overtime which Mr. Harvey had mentioned in previous commentary. In looking at the other booklet provided to the Commission, he noted some changes and asked whether this is a trend that had improved or is it still a working progress.

Although it is still a working progress, Mr. Harvey stated that the Commission should expect compensated absences because the city is accruing the time it has to pay a person sick or vacation in the future; therefore, the city will put it on as a liability because it will have to be paid at some point in time. The city should expect that number to go up as staff gets older. The compensated absences from 2007 to 2008 did go up and they are looking to see if it goes up at an accelerated rate. His comments in the past years included suggestions to cap the sick and vacation time at a certain amount so that the city doesn't have a huge liability on its books.

Mayor Kelley assumed that the HR Department is getting better since they have put some things in place for employees not to accumulate time because it does have an impact.

Commissioner Johnson informed the City Manager that normally sick leave is paid to an employee while employed; therefore, the city should look into that accumulative time that people would normally walk out the door with.

10a. CITIZENS' FORUM:

1. Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida came forward and spoke in favor of the City Manager for doing such a great job in the city. He went on to say that the Planning Council had not met in a while and he is under the impression that the city was waiting on a contract to be signed to have a planner on the Planning Council.

Manager Finnie advised that the contract was signed for Calvin, Giordano & Associates, Inc. and the next Planning Council meeting will be scheduled in May.

According to the city's charter, Commissioner Johnson stated that whomever the city gets as a planner does not sit on the Planning Council.

2. Steven Barrett of 633 Sharar Avenue, Opa-locka, Florida, Opa-locka, Florida appeared before the City Commission and spoke about district elections. He went on to say that he and some citizens are going to move forward to see whether the city is in the guidelines to have district elections or whether the citizens can continue to elect the electors the same way over the years. For the record, he stated that any legal action to be considered won't affect the Commission but the City of Opa-locka.

He indicated that the signage on NW 27th Avenue and Sharar Avenue reads "Sharar Street" which is incorrect and should be corrected. Additionally, a few weeks ago, a mother and her child lost their life on Sharar Avenue and NW 27th Avenue; therefore, he requested a "no u-turn" sign is put up and a traffic light.

As it relates to district elections, Commissioner Johnson asked, isn't that one of the items before the Charter Review Board?

Attorney Weeks said that district elections is one of the issues the Charter Review Board had discussed but it would need to be done by referendum of the voters.

3. Webber J. Charles, Education Chair for the Rotary of Opa-locka/Miami Gardens came forward and spoke about the 1st Annual Kings and Queens Chess Exhibition on Saturday, May 16, 2009 at the JPM Enrichment Centre. He asked for monetary support from the city in their fundraising efforts to provide high school graduates with college scholarships.

Mayor Kelley suggested that Mr. Charles submit a letter in writing through the City Clerk for the City Commission (Mr. Charles provided the City Clerk with letters for the City Commission).

4. Tony Brown of 2762 NW 131st Street, Opa-locka, Florida appeared before the City Commission and stated that Villa Francine was constructed back in 2003. The developer didn't have any respect for the city, state or county laws and he build the community on the contaminated property at Villa Francine. He referred to a letter dated December 19, 2007 from the Miami-Dade County Unsafe Structures Board regarding the property at Villa Francine which was not completed. In this letter, it states that the

developer must comply with cleaning up the land and to acquire building permits for these unfinished properties which he cannot get because of a lien on the land. Another letter was sent on May 2, 2008 giving the City of Opa-locka the authority to tear down the buildings and put a lien on the land for destroying these unfinished buildings.

He continued by saying that the city issued the original Certificate of Occupancy without the developer having the permits and site assessment completed. He asked for an update on this matter.

Manager Finnie stated that someone from Villa Francine had been talking to Octavian Spanner, Director of Community & Economic Development. Being relative new to the city, when he first arrived he attempted to schedule a meeting with the homeowners and it was his understanding that the homeowners were reluctant to meet with him.

Mr. Brown originally received the telephone call and asked Mr. Spanner to send a letter to all of the homeowners with an introduction and information for the meeting.

Manager Finnie stated that the city had developed a plan that took into consideration the homeowners need for quality housing, their right to affordable housing and a clean neighborhood; but he understood there was potential litigation. He requested that the homeowners allow for a discussion and possible solution in a friendly environment. He urged Mr. Brown to contact his staff and schedule a meeting to discuss ideas on resolving this matter. Additionally, there is an environmental issue that needs to be addressed.

For the record, Mr. Brown stated that there is no litigation against the city.

Mayor Kelley advised that the City Manager is aware of this problem and will develop a plan to work with the homeowners.

Hopefully, Mr. Brown stated, the city could allocate some monies to demolish the unfinished structures at Villa Francine.

5. Seliden Jean of 2748 NW 131 Street, Opa-locka, Florida came forward and expressed his frustration with the lack of communication and miscommunication between the city and the homeowners at Villa Francine. He said that the fence between the construction and the actual homes was torn down leaving more room for crime.

Manager Finnie advised of his willingness to meet with the homeowners at Villa Francine to come up with a solution.

Mayor Kelley apologized for the communication breakdown and suggested that the City Manager schedule a meeting on site perhaps in the evening with the homeowners/tenants at Villa Francine.

6. Eldred Redmon of 2766 NW 131 Street, Opa-locka, Florida appeared before the City Commission and commended the Opa-locka Police Department for improvement in

response time. He continued by expressing his disappointment in the elected officials because the homeowners had been coming to the Commission with the same problem at Villa Francine for four years and received the same answers; but yet nothing has happened.

Mayor Kelley responded by saying that Mr. Redmon is correct about the homeowners coming before the Commission, but he could only rely on staff. However, he is aware that the previous manager attempted to set up meeting and was told that the homeowners didn't want to meet because there was going to be litigation. When Mr. Finnie came on board he directed him to stay on top of the issue with Villa Francine because of his expertise in that area. He assured Mr. Redmon that the Commission was trying to resolve this issue but what's been lacking is the communication to the homeowners as far as what's going on. Although Mr. Finnie is new, the staff isn't and there should have been more communication and dialogue.

After speaking with the City Manager a couple of weeks ago about Villa Francine, Commissioner Johnson said the City Manager informed her of the process that needed to be followed. Previously, the homeowners brought to the city's attention about the tractor trailers parked at Wachovia Bank and the city took care of that issue and continued working with Wachovia to beautify that area. She recalled a group of homeowners coming before the Commission indicating that Mr. Brown was the spokesperson for that community. With that, the Commission did look for staff to connect although there was a breakdown. She directed the City Manager to make this item a priority.

She recalled speaking to the previous City Manager about Villa Francine but because there was a lawsuit filed the City Attorney recommended that the city back off on the issue.

7. Raymond Felipe of 110 Perviz Avenue, Opa-locka, Florida came forward and requested a letter of intent from the City of Opa-locka until the city could make a decision as to whether they were interested in the property at 110 Perviz Avenue for a future City Hall site.

Commissioner Johnson advised that the City Commission passed a resolution directing the City Manager to explore the feasibility of that property for a future City Hall site. After receiving correspondence from Mr. Felipe, she forwarded it to the City Manager for follow up. She asked for a legal opinion as to Mr. Felipe's request for a letter of intent.

Attorney Weeks requested that she be allowed an opportunity to review this matter and get back to the Commission with a legal opinion.

Commissioner Johnson suggested that both the City Manager and City Attorney meet to discuss this issue.

Mayor Kelley suggested that the City Manager be allowed to explore as provided in the resolution, bring the City Attorney up to speed and follow up with a recommendation to the Commission.

8. John Cook of 14580 NW 27th Avenue, Opa-locka, Florida came forward and expressed his concerns regarding Code Enforcement. After confronting a Code Enforcement Officer about his poor performance and inaccurate position in enforcing the code, he said he was specifically targeted by Code Enforcement. He was informed that during roll call the officer flat out told the officers to go to John Cook's house.

He asked for the truth as to who directed the officers to go to his house when he can identify 50 violations within 4 square blocks of his home. He said if there were any discretionary thoughts that it didn't happen that way, he has an officer who is willing to step forward and speak about the truth.

After hearing Mr. Cook's concern, Mayor Kelley stated that no person should be targeted. He directed the City Manager to address this issue and report back to the Commission.

With regards to the employee who shared the information with Mr. Cook, Commissioner Johnson stated that the State of Florida and the City of Opa-locka has the Whistle Blowers Act. Also, she found it odd that Code Enforcement would go to Mr. Cook's home following a meeting she and Mr. Cook had with the City Manager and Community Development Director. She made mention to several code violations throughout the city that have not been addressed.

Mr. Cook stated that he was told the restaurant on NW 27th Avenue was shut down and that they've opened back up. He inquired as to how the restaurant opened back up when they were shut down by the Code Enforcement Department.

9. Eddie Mae McCray of 2470 NW 141st Street, Opa-locka, Florida appeared before the City Commission and requested speed bumpers on NW 141st Street because of the constant speeding of cars.

Mayor Kelley had noticed the need for the bumpers on that street and mentioned it to the City Manager; therefore, the City Manager is aware but he is unsure where he is in the process.

Commissioner Johnson stated to the City Manager that this was the same area she mentioned to him about that needed trees.

10. Thelma Edwards of 2450 NW 141st Street, Opa-locka, Florida, came forward and said she would like to see trees planted in her area.

Manager Finnie advised that additional trees would be planted and he would make sure to look at Mrs. Edward's street.

11. Francois Theodore, restaurant owner of 14500 NW 27th Street, Opa-locka, Florida came forward and expressed his frustration regarding individuals coming from the outside selling barbeque in front of a property. More specifically he made reference to the restaurant across from his business on NW 27th Avenue in which the owner has allowed individuals to sell barbeque on the outside of the property. Additionally, he spoke about the need for signage at the intersection of NW 27th Avenue and Sharar Avenue.

Mayor Kelley stated that one of the city's challenges is having people like Mr. Theodore who have a business, go through the process to then have someone show up peddling.

Manager Finnie said he would research this issue because the city closed the business down and it appears they have opened back up.

After some discussion, Manager Finnie said he would address this issue.

Commissioner Johnson informed the City Manager that near the warehouse on NW 17th Avenue and NW 135th Street there's a big sign that reads "Barbeque" with an arrow pointing in the direction.

Commissioner Tydus stated that on that day the common echo was Code Enforcement issues and the city has a full compliment of Code Enforcement Officers more than ever. The majority of the complaints from citizens were Code Enforcement related. With the new Code Enforcement Director and full compliment of officers, she said she would expect this to cease. She went on to say that she had made Code Enforcement complaints in the past and it had been told to her that a specific Code Enforcement Officer had made the statement "well I'm just here because Commissioner Tydus filed this complaint" and these kinds of things have to cease and must be addressed.

Manager Finnie advised that Mr. Manning is the new director of Code Enforcement and they will work together to address this matter and bring in line those that need to be brought in line as well as increase the number of enforcement activities on a regular basis. Many of the complaints on that day were created because of inconsistent information being provided to local businesses.

12. Jeanette Matthews of 2431 NW 140th Street, Opa-locka, Florida came forward and complained about the young men in front of her home gambling. She suggested that this matter be addressed. As far as the trees are concerned, she said she didn't ask for a tree to be put in front of her yard.

Commissioner Johnson expressed her concern regarding the remark from the citizen about the trees. She requested that the city conduct an educational component for citizens on the importance of trees in the community. The City of Opa-locka along with the City of Miami Gardens and other cities in Miami-Dade County adopted legislation with the designation of tree cities.

13. David Grant of 17741 NW 14th Court, Miami Gardens, Florida appeared before the City Commission and voiced his concerns regarding public parking for City Hall offices at Town Center building as well as the designated parking for the elected and appointed officials.

Mayor Kelley suggested that the City Manager take a look at the parking issue as far as city vehicles parking all over the area as oppose to the parking lots designated for city staff.

Following brief discussion about the parking situation, Manager Finnie asked for an opportunity to look at this issue with the police chief because this is a complicated decision due to a number of factors.

14. Celia Pruett of 2350 NW 141st Street, Opa-locka, Florida and Sheila Pruett of 2295 NW 140th Terrace, Opa-locka, Florida came forward and thanked the city for honoring their mother by designating NW 141st Street as Mother E. Jean Pruett Street in the City of Opa-locka.

11. ACTION ITEMS (items from consent agenda pull list):

15.1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO RESPOND TO A MIAMI-DADE COUNTY REQUEST FOR QUALIFICATIONS (RFQ) FOR REAL ESTATE SERVICES IN CONNECTION WITH THE NEIGHBORHOOD STABILIZATION PROGRAM AND CONSISTENT WITH EXHIBIT "A". *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Not present
Commissioner Johnson	Yes
Mayor Kelley	Yes

15.2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DECLARING TWO (2) VACANT CITY-OWNED PROPERTIES, IDENTIFIED BY FOLIO NUMBERS 08-2121-007-1041 AND 08-2122-007-0270 AS SURPLUS PROPERTIES; AUTHORIZING THE TRANSFER OF SAID SURPLUS PROPERTIES FOR THE PURPOSE OF CONSTRUCTING "GREEN" SINGLE-FAMILY RESIDENTIAL UNITS; FURTHER AUTHORIZING THE CITY

MANAGER TO ENTER INTO AND EXECUTE AN AGREEMENT FOR THE TRANSFER OF SAID PROPERTIES TO THE MIAMI-DADE AFFORDABLE HOUSING FOUNDATION, INC. ("MDAHF"), CONTINGENT UPON CERTAIN CONDITIONS, IN A CONTRACT FORM ACCEPTABLE TO THE CITY ATTORNEY. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Johnson asked, were the folio numbers checked?

Manager Finnie advised that the folio numbers were accurate.

Commissioner Johnson inquired about whether the City Attorney checked the folio numbers provided in the above resolution.

Attorney Weeks stated that she did not check the folio numbers because that was not a part of what she does for legal preview.

Commissioner Johnson requested that the City Attorney bring back a resolution so that everything coming in front of the Commission for legal sufficiency is checked by the City Attorney. The folio numbers must be checked before coming before the Commission.

Commissioner Johnson asked, how was Affordable Housing Foundation, Inc. chosen?

Manager Finnie informed the Commission that a tour was done to look at some of the company's products. The foundation is affiliated with the Miami-Dade Housing Agency which specializes in providing affordable housing, financing affordable housing and working with people in various communities to purchase a home.

Commissioner Johnson asked, where does the city come back to be involved in the process in terms of the houses and who they go to?

Manager Finnie advised that the city has the opportunity to be involved in the process. This is a joint project which is part of the green initiative and both houses are truly green units.

Commissioner Johnson expressed her concerns about not seeing anything in the correspondence that connects the city back to any part of the engagement. For instance, if the city wanted to have a lottery for Opa-locka citizens to purchase the homes; there's nothing in writing that would allow the city to do that.

With regards to the properties, Manager Finnie stated that the city is giving the properties, those properties will be financed and the people will borrow money to purchase the homes.

Once the transfer of property ownership from the city to the Foundation was complete, Vice Mayor Taylor noted that the concern was that the city would be finished in the process.

Mayor Kelley made comments based on what Commissioner Johnson was saying with regards to city residents having an opportunity to own the property because once the property is transferred the city doesn't have any control. He said that Commissioner Johnson's concern is that she doesn't see anything built into this resolution that would address that issue.

Opal Jones, Miami-Dade Affordable Housing Foundation of 19 West Flagler Street, Miami, Florida came forward and stated that this resolution is to help enhance the community by improving the housing stock and infrastructure in the community; thereby keeping the current residents as well as attract new residents. Their commitment as a Housing Counseling Agency is to counsel up to 500 from the community to get them eligible to buy the homes. The commitment is to have the residents of Opa-locka as buyers of these homes and any subsequent homes that are developed. As far as the city providing the names and doing a lottery then that's up to the Commission.

Commissioner Johnson suggested that everything Mrs. Jones just indicated should have been included in the correspondence; otherwise, the city doesn't have anything to substantiate the verbal commitment.

Mrs. Jones advised that it would be negotiated in the written contract.

Commissioner Johnson asked that the City Attorney and City Manager include it in the resolution before the Commission votes on it. The city must make sure due diligence is done and documented.

Vice Mayor Taylor asked about the normal process once property is obtained from cities?

Mrs. Jones stated that Mr. Lundy the developer builds an extraordinary product for affordable housing and as a foundation, they normally don't support developers; however, they believe that Mr. Lundy brings value to the community and because he's a small business, they support him. She said this is a pilot program for the city and the second time the foundation has done it.

Vice Mayor Taylor asked for information on the process followed for the first time the pilot program was done.

Mrs. Jones briefly explained the process followed with the first pilot program.

After the land is given to the foundation, Vice Mayor Taylor asked, would the city be done with everything?

Mrs. Jones said she talked about a contract that would rely on the city being more involved.

Vice Mayor Taylor indicated that what Commissioner Johnson is saying is that the city's involvement cannot be verbal but must be included in the resolution in writing.

Manager Finnie informed the Commission of the timetable for development which is 12 months and the ten year lien on the property to make sure it remains affordable; therefore, there are certain things done in this transaction to secure the city. But the programmatic version as just mentioned is not there and may need to be included in the contract.

Commissioner Johnson asked that the City Attorney include the programmatic language in the resolution as an amendment.

Attorney Weeks advised that the language would be included as a part of the contract and right now the way it's written it does give a 12 month timetable for development; it was contemplated there would be oversight, the city would have a contract that would correspond with this. For the record, she informed Commissioner Johnson that what the attorney's office does in terms of the folio numbers is check what is given to them. Therefore, they do check the folio numbers for the resolution with the back up information provided. In terms of going out and checking or doing any kind of survey, that's not a part of what the attorney does for legal.

In moving forward, Manager Finnie reassured the Commission that he would take the appropriate steps to check the folio numbers.

Commissioner Johnson requested a friendly amendment to the resolution to indicate that the verbiage would be included in the contract.

Following brief discussion, Attorney Weeks read the amendment to be included in the resolution as a final whereas clause as follows: Whereas, it is the intent of the City Commission that the City Manager and staff be involved in all aspects of the planning and development of the affordable housing project.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to amend the resolution to include a final whereas clause as read into the record by the City Attorney.

There being no discussion, the amendment passed by a 4-0 vote.

Commissioner Holmes	Not present
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes

Mayor Kelley	Yes

There being no further discussion, the motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Not present
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	

15.3: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DIRECTING THE CITY MANAGER TO EXPLORE THE ESTABLISHMENT OF A COMMUNITY REDEVELOPMENT AGENCY (CRA) AND AUTHORIZING THE CITY MANAGER TO INITIATE A "FINDING OF NECESSITY" STUDY, IN ACCORDANCE WITH CHAPTER 163, PART III, FLORIDA STATUTES. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Mayor Kelley, seconded by Commissioner Johnson to pass the above resolution.

As it relates to the CRA and the Finding of Necessity, Mayor Kelley expressed the challenges with the timeframes and the length of time it would take to complete. He asked, is there any way to shorten those timeframes outside of the original Finding of Necessity?

He continued by saying that the city had completed "Finding of Necessity" studies in the past; however, there's a possibility that those are outdated.

Once he begins working with the consultant, Manager Finnie said he would come back to the Commission on a more realistic timeline. The city currently has a consulting firm on its team and that should shorten the timeline for the Finding of Necessity study.

Commissioner Johnson suggested that the City Manager have staff research previous resolutions adopted, the Finding of Necessity Study as well as the Old Water Plant study.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Not present
Mayor Kelley	Yes

12. NEW ITEMS:

13. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

14. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

Attorney Weeks advised that the following resolution is under the public hearing section consistent with Florida Statutes 376.80 which is to be read with two public hearings and as a requirement it is to be passed as a resolution as oppose to an ordinance.

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DESIGNATING THE ENTERPRISE ZONE AREA WITHIN THE CITY OF OPA-LOCKA, AS SET FORTH IN EXHIBIT "A" ATTACHED HERETO, AS A "BROWNFIELD AREA" PURSUANT TO SECTIONS 376.77 – 376.85, FLORIDA STATUTES, CONTINGENT UPON A SURVEY SHOWING THAT THE DESCRIBED AREAS OF EXHIBIT "A" ARE WITHIN THE MUNICIPAL BOUNDARIES OF THE CITY OF OPA-LOCKA (second public hearing will be held on May 13, 2009). *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

Mayor Kelley opened the floor for a public hearing.

Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida appeared before the City Commission to inquire about the area being designated as a "Brownfield Area"?

Mayor Kelley stated that the airport area is being designated as a Brownfield area.

Manager Finnie added that it is primarily the western part of the airport industrial park. In light of the conversation with Miami-Dade Aviation, he stated for the record that in order for that area to become a Brownfield area the city has to pass the resolution.

There being no further persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Tydus, seconded by Vice Mayor Taylor to pass the above resolution on first reading.

Vice Mayor Taylor asked, is this the piece of land that the developers need the city to vote on?

Manager Finnie said the developers need the city to designate this area as a Brownfield as a way of stimulating development but this has nothing to do with the county.

Vice Mayor Taylor added that if the developers can't build, they have to go back to the county and the county will come to the city.

Manager Finnie stated that the Brownfield would allow the developers to pursue building cheaper. Also, he wants to talk to the developers about linking jobs for Opa-locka to those projects.

Vice Mayor Taylor stated that once the city designates this area as Brownfield then it has nothing to bargain with or even discuss.

Manager Finnie said there are two issues: negotiations with the developers and negotiations with the county. The question is does the city have a transaction with the Brownfield designation and can the city leverage the Brownfield designation to get what it wants from the county, impact fees and the developers.

With the Commission passing this legislation, Mayor Kelley said it was his understanding that it would allow the City Manager to negotiate but there's other things the city must sign off on before it can take place.

Manager Finnie stated that the legislation, if passed, doesn't become valid until signed. He further requested that the Commission proceed with the item and he would ask to closely work with the City Clerk as to when the item is forwarded for signatures.

There being no further discussion, the motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Commissioner Holmes	Not present
Mayor Kelley	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA; AMENDING CHAPTER 2, SECTION 2-44 OF THE OPA-LOCKA CODE OF ORDINANCES ENTITLED "SPECIAL MEETINGS" BY AMENDING PROVISIONS RELATED TO POSTING NOTICE FOR SPECIAL MEETINGS OF THE CITY COMMISSION; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.A.*

The above ordinance was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Commissioner Holmes	Not present
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

B. SECOND READING/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA APPROVING THE DUAL DESIGNATION OF NW 141ST STREET FROM NW 23RD AVENUE TO NW 26TH AVENUE AS "MOTHER E. JEAN PRUETT STREET"; PROVIDING FOR REPEAL OF ALL ORDINANCES IN CONFLICT; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE (first reading held on April 8, 2009). *Sponsored by M.T.*

The above ordinance was read by title by Attorney Weeks.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to adopt the above ordinance.

Commissioner Johnson clarified that Mother E. Jean Pruett lives on NW 140th Terrace and not NW 141st Street as designated in the ordinance. She said she would sponsor a resolution for NW 141st Street. The correspondence the Commission received was for NW 141st Street to be considered for someone else.

Vice Mayor Taylor asked, what is the number of the street that runs along side the canal east and west?

Lavelle Jenrette of the City of Opa-locka Public Works Department came forward and indicated that the street along the canal is NW 141st Street.

Based on what Mr. Jenrette stated, Vice Mayor Taylor said the ordinance is correct.

For the record, Commissioner Johnson stated that the Commission received a petition forwarded from the City Manager for that same street for another resident that lives on the street. At first, she was told that a street couldn't have more than one person's name but she has since done some research and that is not true.

Mayor Kelley expressed his concerns regarding the streetnaming process because the intent was to honor and recognize someone and to have all the citizens in the community

happy with it. The Commission received the correspondence about the long time resident who stayed on NW 141st Street and according to the petitioners this individual is a champion of that community. The City Commission must create a better process of vetting this before it gets to a certain point.

As the city moves forward, he directed that the City Attorney look into creating a better process so the Commission is not put in this position. Additionally, he doesn't know whether the individual in the correspondence is actually a long time resident.

Attorney Weeks read into the record the criteria for streetnaming as reflected in the city's Code of Ordinances. She said she was only trying to inform the mayor of what's currently in place and it's up to the Commission if they want to make the criteria more stringent.

Commissioner Tydus advised that she originally sponsored the amendment for the streetnaming because she was concerned about the dual designations of streets in Opa-locka. In her opinion, it has got out of hand and lost its purpose whatever that purpose was intended to be, but tonight it is ending with her. To date, the city has spend over $50,000.00 unbudgeted dollars on dual designation of streets.

She spoke on a few streetnaming events where there was citizen support (i.e. President Barack Obama Avenue; Veteran's Way) but for the most part each and every observance was attended by family members and not the community. She said she was uncomfortable with the entire process because this is history making legislation and there should be some kind of book or reference point in the archives giving the significant contributions.

She continued by saying she was uncomfortable with the process and the Commission has brought it to a common place level the fact that they have not followed the criteria set. She advised that she would no longer participate in any street or dual designations until the Commission can develop a plan as to where they want this to go. The Commission doesn't have to come up with more stringent requirements because those are already in the code; they just need to follow the process and criteria.

Because the Commission had already adopted the dual designations in the past, Vice Mayor Taylor suggested that they adopted the two on the agenda; otherwise they would have to undo all those in the past.

She went on to say that if Commissioner Tydus is going to draw the line then she would have to do it after these two second reading ordinances for dual designations because it had gone too far.

After more discussion, Mayor Kelley directed the City Attorney to work on something perhaps a resolution to take a break on streetnamings and fine tune the criteria and contributions to make it a little more concrete.

Vice Mayor Taylor encouraged Commissioner Tydus to agree to these two ordinances for dual designations and then the Commission can take a breath.

Commissioner Tydus suggested that the Commission simply follow what they already have in legislation and a resolution is not needed because everything is spelled out in the code.

Mayor Kelley informed the Commission of his intentions to not name any streets for a while whether it meets the criteria or not.

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Commissioner Holmes	Not present
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA APPROVING THE DUAL DESIGNATION OF WILMINGTON STREET FROM NW 18TH AVENUE TO NW 22ND AVENUE AS "JOHNNIE MAE GREENE STREET"; PROVIDING FOR REPEAL OF ALL ORDINANCES IN CONFLICT; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE (first reading held on April 8, 2009). *Sponsored by D.J.*

The above ordinance was read by title by Attorney Weeks.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above ordinance.

For the record, Commissioner Johnson stated this would be her last streetnaming designation at least for a couple of years.

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Yes
Commissioner Holmes	Not present
Vice Mayor Taylor	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

Vice Mayor Taylor agreed with Commissioner Tydus and suggested that the Commission take a breath on streetnaming designations. She said she would work with Commissioner Tydus and hold off on future designations.

C. RESOLUTION(S):

15. ADMINISTRATION:

CONSENT AGENDA:

4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AMENDMENT NO. 7 TO CONTRACT NO. X1167 BETWEEN THE CITY OF OPA-LOCKA AND THE DEPARTMENT OF JUVENILE JUSTICE (DJJ) FOR CONDITIONAL RELEASE PROGRAM SERVICES FOR THE OPA-LOCKA POLICE YOUTH ACADEMY, IN THE AMOUNT OF THREE MILLION TWO HUNDRED NINETY SIX THOUSAND THREE HUNDRED NINETY DOLLARS AND SEVENTY FOUR CENTS ($3,296,390.74). *Sponsored by C.M.*

The above consent agenda resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the consent agenda resolution.

The motion passed by a 4-0 vote.

Commissioner Holmes	Not present
Vice Mayor Taylor	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

A. CITY MANAGER'S REPORT:

Manager Finnie provided an overview of the tabbed items in the booklet provided to all members of the Commission. They were presented as follows:

Tab 1 Action List: Commission Concerns and Departmental Responses/Results

Tab 2 Direct TV Franchise Fees

Tab 3 Proposed Grant Application Update

Tab 4 Finance Department Reports: Outstanding Debt – Accounts Receivable Report as of April 15, 2009; Budget to Actual Status Report Ended March 31, 2009

Tab 5 Property Foreclosure Listing

Tab 6 City of Opa-locka Hiring Analysis as of December 15, 2009

Tab 7 Resident Hiring Allegation

Tab 8 Report on Recent Burglary of 215 North Perviz Avenue

Tab 9 City of Opa-locka – In the News

Tab 10 Upcoming City Events 2009

He continued by briefing the Commission on the city's foreclosure initiative which is the city's application to Miami-Dade County in which they have set aside 21.5 million dollars for various foreclosure initiatives. The resolution approved would allow for the city to go out and compete for those dollars. Additionally, the city is working with Primary Source Mortgage who is assisting residents with foreclosure issues on the horizon. Finally, the city will commence to work with BMJ Community Development, Inc. which is a HUD certified assistance agency as soon as a contract is signed.

Vice Mayor Taylor reminded the City Manager to continue working on a strategy to lower property taxes and utility costs for citizens. She continued by asking for an update to her request at a previous meeting for securing the Offices of the City Clerk/ City Commission.

Manager Finnie stated that he would expect to get a copy of that design prior to the next commission meeting. This design consists of a system where a person would have to be buzzed in to get into the office.

Vice Mayor Taylor suggested that the office is secured on a temporary basis until staff can come up with a permanent solution.

She mentioned the need to block off the ledge at the canal behind the Fish Market on NW 151st Street where both children and adults sit on and it's an accident waiting to happen.

She further recommended that the city conduct repairs, upkeep and maintenance in Zone 5.

In preparation for hurricane season, Commissioner Johnson requested that the city clean the drainage and put a schedule in place for cleaning the drainage on a regular basis.

Manager Finnie stated that he is scheduled to provide the Commission with a schedule for maintenance and Public Works has assigned two persons in a vehicle to clean the drains.

Commissioner Johnson made Mr. Finnie aware of the plan FIU completed on the water plant and recommended that the city start working on the infrastructure in order to move to the next level. She requested a timeline of action items as to the progresses.

With the grant information, Manager Finnie stated that there are two items for submission in May and one of those items is an Eight Million Dollar grant submission to the State of Florida for the water plant which is being done in conjunction with FIU. In terms of the infrastructure, he along with Public Works met with the Directors of DERM and WASA to present a Thirty-Three Million Dollar infrastructure improvement plan.

Commissioner Johnson asked that the infrastructure is fast forwarded because of the monies available as a part of the Stimulus Plan.

Manager Finnie stated that the city is going for three lift stations and a gap financing on a capital project and may have to fast track identifying consultants to make sure they are shovel ready. The only problem is that the President Obama's administration has identified shovel ready as 85% complete and the State of Florida has identified shovel ready as 100% designed, permits ready to go which is not quite what the President had recommended.

Commissioner Johnson requested that the Commission is provided with an organizational chart, salary, and job descriptions for all employees.

She further requested traffic control on NW 22nd and NW 27th Avenues from NW 151st Street to NW 135th Street. Additionally, she noticed vehicles drag racing on NW 151st Street and that too should be addressed.

Lastly, she asked that the City Manager look into purchasing hands free headsets (Bluetooth) for employees because she has still noticed the cellular phone usage of employees while driving city vehicles and not paying attention.

Commissioner Tydus asked for the status of the Community Garden on Sharazad Boulevard and Codadad Street.

Manager Finnie suggested that he be allowed to consult with the Public Works Director for an update; however, he believed the plans and funding were in place.

In the City Manager's employment supplemental comments, Mayor Kelley noticed that the statement indicates the police department's hiring practices are outside of the administration's hiring but they're not outside of the City Manager because everything falls within the City Manager. After hearing the concerns from the citizens, he said he would hope the City Manager is more aware as it relates to some of the things going on.

Most importantly, Mayor Kelley suggested that the City Manager make sure there's a designated point person of communication particularly when it comes to the airport issue.

He continued by suggesting that the City Manager include all grants in the list provided although some of the grants may not be due until a later date.

B. ACCOUNTS PAYABLE:

16. OFFICIAL BOARD REPORTS:

17. CITY ATTORNEY'S REPORT:

Attorney Weeks reported that the city won an appeal in the Barrett vs. City of Opa-locka case which dealt with pension issues passed by ordinance and it went up on appeal; reconsideration was requested on that appeal and it was denied. The city should be able to apply for funding to get out of the state pension fund and go into the general fund of the city.

Vice Mayor Taylor directed the City Attorney to bring back a resolution supporting NAACP membership drive.

18. CITY CLERK'S REPORT:

19. MAYOR/COMMISSION REPORT:

Vice Mayor Taylor thanked the City of Opa-locka Parks & Recreation, Public Works Department and the Shriners for the Easter Egg Hunt.

She stated that it is good to serve with commissioners who are on one accord and understand the bigger picture that this is not about them but about the citizens of Opa-locka.

Commissioner Johnson reported that on May 16, 2009 she would sponsor a graduation through the Youth Prevention Coalition for the cities of Miami Gardens and Opa-locka for completion of the Crime Watch, Life Skills training and Abstinence Programs. Also, Speaking Hands is working with the Pearls and COOL Kids and their outcome would be measured in 60 to 90 days for the progress.

She continued by saying that she will start to plant vegetables at the two community gardens in the city.

She announced that Target is offering free eyeglasses for children by visiting www.target.com.

Lastly, she reported that she is working with staff on a hurricane preparation plan for the city and this is the first time in her tenure she has seen a complete plan of preparation.

Commissioner Tydus invited everyone to attend the City of Opa-locka Save Our Streets Coalition Walk Against Violence on April 25, 2009 and National Day of Prayer Observance on May 7, 2009 at 12:00 p.m. in the city Commission Chambers.

In observance of National Day of Prayer on May 7, 2009, Mayor Kelley announced that the Unity Breakfast will begin at 8:30 a.m. and the Community Outreach at 6:00 p.m.

He announced that the Business Luncheon Workshop will be held on Monday, April 27, 2009 at 12:30 p.m. at Town Center One.

He reported that he participated in the Miami-Dade County's Opa-locka Branch Library Learn to Read program, attended Vice Mayor Taylor's Easter Egg Hunt and the Teen's Basketball League.

20. OFFICIAL BOARD APPOINTMENTS:

It was moved by Commissioner Johnson, seconded by Mayor Kelley to re-appoint David Grant to the Nuisance Abatement Board.

There being no discussion, the motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Not present
Commissioner Tydus	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

21. ADJOURNMENT:

There being no further persons to come before the City Commission, it was moved by Commissioner Johnson, seconded by Commissioner Tydus to adjourn the meeting.

ATTEST:

MAYOR

CITY CLERK